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IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 23-10-2026

CORAM

THE HON'BLE MR.JUSTICE N.RAMESH

CRL OP No. 30958 of 2026

CNR: {HCMA012566822026}

Subramaniyan
S/o Maruthamuthu,
Gandhi Nagar,
Sendurai Town and Taluk,
Ariyalur.

Case QR

..Petitioner(s)

Vs

The State Rep By, The Inspector of Police
Sendurai Police Station,
Ariyalur.
Crime No.275 of 2026

..Respondent(s)

Prayer: This petition is filed under section 483 of BNSS to enlarge the petitioner on bail pending investigation in Crime No.275 of 2026 on the file of respondent police.

For Petitioner(s): Mr. T.Muruganantham

For Respondent(s): Mr.M.M.I.Khaleel,
Govt.Advocate (Crl.Side)

ORDER

The petitioner, who was arrested and remanded to judicial custody on 03.10.2026 for the alleged offence under Sections 290,106(2) of BNS (288, New Section of Ipc) subsequently altered into Section 290, 150 of BNS Act (288, 123 of IPC) in Crime No.275 of 2026 on the file of the respondent police, seeks bail.

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2. The case of the prosecution is that the petitioner employed the deceased to remove the scaffolding in the septic tank, due to which the deceased inhaled toxic gas and died. It is alleged that the petitioner has not provided any safety tools to the deceased to protect him from the toxic gas, due to which the deceased died. Hence, the case.

3. The learned counsel for the petitioner submitted that the petitioner is innocent and he has been falsely implicated in this case. He also submitted that the petitioner is in judicial custody since 03.10.2026 and he is ready to abide by any stringent conditions that may be imposed by this Court. He further submitted that he has paid Rs.1,00,000/- to the jurisdictional tahsildar as compensation to be paid to the victim family. Hence, he prays for grant of bail to the Petitioner.

4. Per contra, the learned Government Advocate (Criminal Side) appearing for the Respondent Police reiterated the prosecution case and submitted that he has not instructions with regard to the payment made by the petitioner to the jurisdictional tahsildar. Hence, he opposed the grant of bail to the Petitioner.

5. I have given my anxious consideration to either side submissions and perused the materials available on record.

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6. Considering the submission made by both sides; nature of offence; the petitioner has paid Rs.1,00,000/- to the jurisdictional tahsildar and the petitioner is in judicial custody since 03.10.2026, this Court is inclined to enlarge the petitioner on bail on certain conditions.

7. Accordingly, the petitioner is ordered to be released on bail on executing a bond for a sum of **Rs.25,000/- each (Rupees Twenty Five Thousand only)** with **two sureties**, for a like sum to the satisfaction of the **learned District Munsif Cum Judicial Magistrate, Sendurai ,** and on further conditions that:

[a] the sureties shall affix their photographs and Left Thumb Impression in the Application for Surety ship [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure their identity;

[b] the petitioner shall report before the respondent police daily at 10.30 a.m., until further orders;

[c] the petitioner shall not abscond either during investigation or trial;

[d] the petitioner shall not tamper with the evidence or witness either during investigation or trial;

[e] On breach of any of the aforementioned conditions, the learned Magistrate/Trial Court is entitled to pass appropriate orders against the petitioner in accordance with

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law as if the aforementioned conditions have been imposed and the petitioner released on bail by the learned Magistrate/Trial Court himself as laid down by the Hon'ble Supreme Court in **P.K.Shaji vs. State of Kerala [(2005)13 SCC 283];**

[f] If the accused thereafter absconds, a fresh FIR can be registered under Section 269 of B.N.S.

23-10-2026

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Note:

1. Registry is directed to forthwith upload this order in the Official Website of this Court.
2. All concerned to act on this order being uploaded in Official Website of this Court without insisting on certified hard copies. To be noted, this order when uploaded in the official website of this Court will be watermarked and will also have a QR code.

To.

1. The District Munsif Cum Judicial Magistrate, Sendurai

2. The Inspector of Police

Sendurai Police Station,

Ariyalur.

3. The Superintendent, Central Prison, Central Prison, Trichy

4. The Public Prosecutor, High Court, Madras

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N.RAMESH, J.

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